

section nine of the Act of 1920 shall apply accordingly with the necessary modifications.

Regulations
to be laid
before
Parliament.

9. Every order and every regulation made under this Act shall be laid before each House of Parliament forthwith, and, unless and until an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat next after any such order or regulation is laid before it, praying that the order or regulation may be annulled, the order or regulation shall have effect as if enacted in this Act.

Construction
and short
title.

10.—(1) This Act may be cited as the War Pensions Act, 1921, and shall be construed as one with the War Pensions Acts, 1915 to 1920, and those Acts and this Act may be cited together as the War Pensions Acts, 1915 to 1921.

(2) In this Act, unless the context otherwise provides, the expression “pension” means any pension, grant, gratuity, or allowance in respect of disablement under any Warrant, Order in Council, or Order, administered by the Minister, and for the purposes of this Act a person shall be deemed to have been discharged from the service at the time when his active service terminated.

CHAPTER 50.

An Act to make provision for the examination and putting in evidence in trials on indictment in Scotland of witnesses and productions not included in lists lodged, and for the remission for sentence to the High Court of Justiciary of persons pleading or found guilty on indictment in the Sheriff Court. [19th August 1921.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Examination
of witnesses,

1. On the trial of any person on indictment in the High Court of Justiciary or in the Sheriff Court it shall

be competent with the leave of the Court for the prosecutor to examine any witness or to put in evidence any production not included in the lists lodged by him, provided that written notice containing, in the case of a witness, his name and address shall have been given to the person accused not less than two clear days before the day on which the jury is sworn to try the case.

&c., not included in lists lodged.

2. In any proceedings on indictment in Scotland in which the second diet is to be in the Sheriff Court, where the accused shall, either at the first or at the second diet, plead guilty in whole or in part, and the prosecutor shall accept such plea, or where the accused shall at the second diet be found guilty in whole or in part by verdict of the jury, the Sheriff, if he shall hold that any sentence which he can competently pronounce is inadequate and that the question of punishment should be disposed of by the High Court of Justiciary, shall endorse upon the record copy of the indictment a certificate of the plea tendered or of the verdict returned, and shall by an interlocutor written on the said record copy remit the accused to the said Court for sentence, and may, if he shall think fit, append to such interlocutor a note setting forth the reasons for such remit, and such remit shall be of the like force and effect in all respects as a remit in terms of section thirty-one of the Criminal Procedure (Scotland) Act, 1887.

Power to sheriff on plea or verdict of guilty to an indictment to remit to High Court of Justiciary for sentence.

50 & 51 Vict.
c. 35.

3. This Act may be cited as the Criminal Procedure (Scotland) Act, 1921, and the Criminal Procedure (Scotland) Act, 1887, and this Act may be cited as the Criminal Procedure (Scotland) Acts, 1887 and 1921.

Short title.